

2025 LHC 3190; 2025 PCrLJ 1791

[Lahore High Court]

Judges: The Chief Justice



Shiraz Ahmad

versus

The State etc.

**APPLICABILITY OF SANCTION UNDER SECTION 196 CR.P.C. FOR
OFFENCES UNDER SECTION 295-A PPC WHEN PROSECUTED WITH
OFFENCES UNDER THE PREVENTION OF ELECTRONIC CRIMES ACT,
2016.**

Crl. Rev. No. 39709 of 2024
decided on 14th May, 2025.

(a) Code of Criminal Procedure, 1898---S.Section 435, S.Section 439, S.Section 196; Pakistan Penal Code, 1860---S.Section 295-A, S.Section 295-B, S.Section 295-C, S.Section 298-C; Prevention of Electronic Crimes Act, 2016---S.Section 11, S.Section 28, S.Section 29, S.Section 44(1), S.Section 50, S.Section 51; Prevention of Electronic Crimes Investigation Rules, 2018---S.Rule 2; Federal Investigation Agency Act, 1974; Qanoon-e-Shahadat, 1984; Protection of Pakistan Act, 2014; Investigation for Fair Trial Act, 2013---Applicability of sanction under Section 196 Cr.P.C. for offences under Section 295-A PPC when prosecuted with offences under the Prevention of Electronic Crimes Act, 2016.---

Section 196 Cr.P.C. does not apply to courts constituted under a special statute like PECA, 2016, when such proceedings are inconsistent with the provisions of the special act; the dismissal of the petitioner's application by the trial court was proper.

Where prosecution is under a special law and the provisions of the Code of Criminal Procedure are inconsistent with that law, the procedure laid down in the special law prevails; requirements such as sanction under Section 196 Cr.P.C. are not necessary if inconsistent with the special statute's scheme.

Referred to: Sheraz Ahmad, etc., versus The State, etc. Order dated 09.12.2022 in Crl. Revision No.69407 of 2022; Supreme Court Criminal Petition No.168-L/2023 (dismissed as withdrawn on 20.04.2023)

Sh. Usman Karim-ud-Din, Advocate for Appellant.

Syed Muhammad Farhad Tirmizi, Deputy Attorney General, Mr. Rafaqat Ali Dogar, Deputy Attorney General, Naveed S.I/F.I.A., Mr. Muhammad Nawaz Sh., Advocate for Respondent.

the petition in hand is dismissed without costs.

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**JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT**

Crl. Rev. No.39709 of 2024

Shiraz Ahmad ...Vs... The State, etc.

JUDGMENT

Date of hearing 14.05.2025.

Petitioner by: Sh. Usman Karim-ud-Din, Advocate

State by: Syed Muhammad Farhad Tirmizi, Deputy Attorney General, and Mr. Rafaqat Ali Dogar, Deputy Attorney

General, with Naveed S.I/F.I.A.

Complainant By: Mr. Muhammad Nawaz Sh., Advocate. -----

Aalia Neelum, C.J. - This criminal revision under Section 435 Cr.P.C., read with Section 439 Cr.P.C., is directed against the order dated 29.05.2024, passed by the learned Additional Sessions Judge, Lahore, whereby the application filed by the petitioner for obtaining sanction from the authority under Section 196 Cr.P.C. for taking cognizance of the offence under Section 295-A PPC was declined.

2. Precisely, the facts of the case are that the petitioner, along with others, was facing trial in case FIR No. C-88 dated 20.06.2019, registered under Section 295-A, 295-B, and 298-C of the Pakistan Penal Code, 1860, read with Section 11 of the Prevention of Electronic Crimes Act, 2016 (hereinafter referred to as PECA, 2016), and Section 196 of the Code of Criminal Procedure, 1898. During the pendency of the trial, the petitioner moved an application for obtaining sanction from the

authority under Section 196 Cr.P.C. for taking cognizance of the offence under Section 295-A PPC. After hearing arguments from both sides, vide order

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dated 29.05.2024, the trial court dismissed the petitioner's application. Hence, this criminal revision.

3. Arguments advanced by both sides have been heard, and the record has been minutely perused.

4. The Prevention of Electronic Crimes Act 2016 has been promulgated to prevent unauthorized acts concerning information systems and to provide mechanisms for related offences as well as procedures for investigation, prosecution, trial, and international cooperation with respect thereto and for matters connected therewith or ancillary thereto. The Federal Government of Pakistan, under Section 29 of the Prevention of Electronic Crimes Act 2016, read with Section 51 of the same Act, notified the Prevention of Electronic Crimes Investigation Rules, 2018, to carry out the purpose of the Prevention of Electronic Crimes Act 2016. Section 51 of PECA 2016 is hereby reproduced: -

"The Federal Government may, by notification in the official Gazette, establish or designate a law enforcement agency as the investigation agency for the purposes of investigation of offences under this Act."

Rule 2 of the Prevention of Electronic Crimes Investigation Rules, 2018 defines "Investigating Agency" as the Federal Investigating Agency established under the Federal Investigation Agency Act, 1974 (VIII of 1975). Section 1(ix) of the Prevention of Electronic Crimes Act, 2016 (PECA, 2016) defines "Court" as the Court of competent jurisdiction designated under PECA, 2016. The rules framed by the Federal Government under Section 29 of PECA, 2016, read with Section 51 of PECA, 2016, reveal that the courts dealing with cases of the Federal Investigating Agency will handle the matters. Unless any other expression is used in this act, the rule made thereunder but not defined in this act shall have the same meaning assigned to the expressions in the Pakistan Penal Code, 1860. As per the allegations leveled in the crime report, the alleged

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acts constitute offences falling under Section 11 of PECA, 2016, and the offences falling under sections 295-A, 295-B, 295-C & 298-C PPC. The ingredients of Section 11 of PECA, 2016, and under sections 295-A, 295-B, 295-C & 298-C PPC are interlinked, supplementing each other, and they are not inconsistent inter-se. Section 28 of PECA, 2016 provided that:

"The provisions of the Pakistan Penal Code, 1860 to the extent not inconsistent with anything provided in this Act, shall apply to the offences provided in this Act."

Section 50 of the Prevention of Electronic Crimes Act, 2016, outlines the jurisdictional provisions related to other laws. Section 50 of The Prevention of Electronic Crimes Act, 2016 reads as below: -

50. Relation of the Act with other laws.-- (1) The provisions of this Act shall have effect not in derogation of the Pakistan Penal Code, 1860 (Act XLV of 1860), the Code of Criminal Procedure, 1898 (Act V of 1898), the Qanoon-e-Shahadat, 1984 (P.O. No. X of 1984), the Protection of Pakistan Act, 2014 (X of 2014) and the Investigation for Fair Trial Act, 2013 (I of 2013)

(2) Subject to sub-section (1), the provisions of this Act shall have effect notwithstanding anything to the contrary contained in any other law on the subject for the time being in force.

The offences under Section 11 of the Prevention of Electronic Crimes Act, 2016, and Sections 295-A, 295-B, 295-C, and 298-C of the Pakistan Penal Code, 1860, are interlinked and to be tried by a court established under Section 44(1) of the Prevention of Electronic Crimes Act, 2016. This court already addressed the issue to some extent in the case titled “Sheraz Ahmad, etc., versus The State, etc.”, vide order dated 09.12.2022, passed in CrI. Revision No.69407 of 2022. The petitioner assailed the order dated 09.12.2022, passed in CrI. Revision No.69407 of 2022 before the Supreme Court of Pakistan through Criminal Petition No.168-L/2023 and the same was dismissed as withdrawn on 20.04.2023

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by the Honorable Supreme Court as learned counsel for the petitioner, after arguing the case at length, did not press the said petition. Therefore, Section 196 of the Cr.P.C. would not apply to proceedings before a court constituted under a special statute that is inconsistent with the provisions of the Special Act. For the reasons stated above, this court is satisfied that there is no ground for accepting this petition, as there has been no illegality or irregularity in the order of the learned court below. The order impugned needs no interference in the exercise of inherent powers.

5. Given the above, the petition in hand is dismissed without costs.

(AALIA NEELUM)
CHIEF JUSTICE

Approved for reporting

Chief Justice

This order was dictated,
pronounced, prepared, and
signed on May 14, 2025.

*Ikram**

